

BEFORE THE PHILADELPHIA BOARD OF ETHICS

J. Shane Creamer, Jr. Executive Director Philadelphia Board of Ethics 1515 Arch Street, 18 th Floor Philadelphia, PA 19102 Petitioner vs. Dee Dukes Educational Nominating Panel [REDACTED] [REDACTED] deedukes33@gmail.com Respondent	Matter No.: 2510ET24
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**BRIEF IN SUPPORT OF NOTICE OF ADMINISTRATIVE ENFORCEMENT
PROCEEDING**

Pursuant to Philadelphia Board of Ethics (the “Board”) Regulation No. 2 (“Regulation No. 2”), the Procedures for Administrative Enforcement Proceedings that Supplement Board Regulation No. 2, and the Hearing Officer’s November 20, 2025 Briefing Order, the Executive Director submits the following Brief in Support of Notice of Administrative Enforcement Proceeding (“Brief”).

I. PROPOSED FINDINGS OF FACT

1. Dee Dukes (“Dukes” or “Respondent”) was a member of the Educational Nominating Panel when the Educational Nominating Panel was last convened in 2024. Exhibit A, 2024 Statement of Financial Interests filed by Dee Dukes at A1; Exhibit B, February 1, 2024 Meeting Minutes of the Educational Nominating Panel at B1; *see also* Exhibit C, Dukes’ Response to Notice of Administrative Enforcement Proceeding at C4, ¶¶ 1-3.

2. Respondent filed a Statement of Financial Interests (“City Form”)¹ with the Board for calendar year 2024 on September 25, 2025. Exhibit A, 2024 Statement of Financial Interests filed by Dee Dukes at A1; *see also* Exhibit C, Dukes Response to Notice of Administrative Enforcement Proceeding at C4, ¶ 6.

II. **PROPOSED CONCLUSIONS OF LAW**

3. The Ethics Code (“Code”) requires certain individuals to file a City Form—disclosing certain financial information about the filer for the preceding calendar year—with the Board. Code § 20-610(1).
4. In relevant part, the Code requires “[m]embers and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation” to file a City Form. Code § 20-610(1)(e).
5. The Board has determined by regulation that members of the Educational Nominating Panel must file a City Form when the Educational Nominating Panel is convened. Board Regulation No. 3 (“Regulation No. 3”), ¶ 3.6.
6. An individual who is required to file a City Form must do so by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Code § 20-610(1); Regulation No. 3, ¶ 3.7(a).
7. The failure to timely file a City Form is a violation of Code Section 20-610(1), which is subject to a civil monetary penalty of \$1,000. Code §§ 20-612(1), 20-1302.
8. The Educational Nominating Panel was last convened in 2024. Proposed Findings of Fact at ¶ 1.

¹ A Statement of Financial Interests filed with the Board pursuant to Philadelphia Code Section 20-610 is also known as the City Form. *See* Philadelphia Board of Ethics, *Financial Disclosure*, <https://www.phila.gov/departments/board-of-ethics/financial-disclosure/> (last visited November 4, 2025).

9. Therefore, the members of the Educational Nominating Panel when it was last convened in 2024 were required to file the City Form by May 1, 2025. Code § 20-610(1); Regulation No. 3, ¶¶ 3.6, 3.7(a).
10. Respondent was required to file a City Form for 2024 by May 1, 2025 because Respondent was a member of the Educational Nominating Panel when the Educational Nominating Panel was last convened in 2024. Proposed Findings of Fact at ¶ 1; Code § 20-610(1); Regulation No. 3, ¶¶ 3.6, 3.7(a).
11. By filing the City Form on September 25, 2025, 147 days after the May 1, 2025 deadline, Respondent violated the Code Section 20-610(1). Proposed Findings of Fact at ¶ 2; Code §§ 20-610(1), 20-612(1), 20-1302; Regulation No. 3, ¶ 3.7(a).
12. Respondent's Code violation is subject to a civil monetary penalty of \$1,000. Code §§ 20-612(1), 20-1302.

III. ARGUMENT

Respondent admits she was a member of the Educational Nominating Panel when it convened in 2024, which obligated Respondent to file a City Form by May 1, 2025. Proposed Findings of Fact at ¶ 1; Code § 20-610(1); Regulation No. 3, ¶¶ 3.6, 3.7(a).² Respondent did not file the City Form with the Board by May 1, 2025. Proposed Findings of Fact at ¶ 2. Accordingly, Respondent violated the Code and is subject to a \$1,000 civil monetary penalty. Code §§ 20-610(1), 20-612(1), 20-1302; Regulation No. 3, ¶ 3.7(a).

² In particular, Regulation No. 3, Paragraph 3.7, Example 4 informs the appropriate disposition of this matter. In Example 4, in part, the members of a nominating panel that is listed in Regulation No. 3, Paragraph 3.6 and was convened in 2021 were required to file a City Form with the Board by May 1, 2022 that disclosed information related to calendar year 2021. Here, the Educational Nominating Panel, which is listed in Regulation No. 3, Paragraph 3.6, was convened in 2024. Therefore, the Panel's members were required to file a City Form by May 1, 2025 that disclosed information related to calendar year 2024.

a. Neither the Code nor Regulation No. 3 contain notice or intent requirements as Respondent claims.

In her Response to Notice of Administrative Enforcement Proceeding, Respondent claims that the “Board must provide proper notice to the individual so as not to prejudice the rights and responsibility of the individual” with respect to the requirement that certain individuals file the City Form. Exhibit C, Dukes’ Response to Notice of Administrative Adjudication at C2. Respondent alleges that she did not receive proper notice of either the requirement to file or the consequences of a failure to file. *Id.* at C2-C4. Additionally, Respondent claims that because she did not receive proper notice of the City Form filing requirement, she did not intentionally fail to timely file the City Form. *Id.* at C3, C4, ¶ 3, C5, ¶ 8. Therefore, Respondent argues that she did not violate Code Section 20-610(1) for failing to timely file the City Form as alleged by the Executive Director. *Id.* at C5, ¶ 8.

For the reasons discussed *infra*, Respondent’s claims fail as a matter of law, as neither the Code nor Regulation No. 3 require the Board to provide notice to individuals of their requirement to file the City Form. In any event, Respondent had an opportunity to file the City Form late without a monetary penalty. Finally, whether the failure to timely file the City Form was done knowingly or intentionally is of no significance as to whether a violation occurred. Respondent does not raise any defenses that impact the Executive Director’s proposed findings and proposed conclusions of law that Respondent was required to file a City Form by May 1, 2025 and did not do so. Accordingly, the Board should find Respondent violated the Code and is subject to a \$1,000 civil monetary penalty. Code §§ 20-610(1), 20-612(1), 20-1302; Regulation No. 3, ¶ 3.7(a).

i. Neither Philadelphia Code Section 20-610 nor Regulation No. 3 require any notice from the Board regarding the obligation to file the City Form.

Code Section 20-610, as interpreted by Regulation No. 3, does not require the Board, who is charged with ensuring compliance and the enforcement of the filing of the City Form, to provide notice to individuals that are required to file. *See generally* Code § 20-610; Regulation No. 3. Rather, it is “the duty of each head of a department, agency, authority, board, and commission to furnish a copy of this ordinance [Code Chapter 20-600 *et al.*] to each and every employee under his or her direction.” Code § 20-611. Therefore, the Board was not required to provide notice to Respondent of her filing requirement, either before or after the May 1, 2025 deadline, as Respondent claims. Accordingly, for the reasons discussed *supra*, the Board should find Respondent violated the Code Section 20-610(1) and is subject to a \$1,000 civil monetary penalty.

ii. Respondent had an opportunity to file the City Form late that would not have resulted in a civil monetary penalty.

Although Board staff was under no legal obligation to inform Respondent of her requirement to file the City Form, Board compliance staff contacted Respondent anyway and gave Respondent an opportunity to file late without the imposition of a penalty. *See generally* Exhibit D, Compliance Correspondence from Investigative Analyst Alexander Kramer to Dee Dukes; Exhibit E, Declaration of Investigative Analyst Alexander Kramer. Board compliance staff contacted Respondent several times after the May 1, 2025 deadline. *Id.* Board compliance staff offered Respondent a time period to cure the deficiency without penalty – specifically, until June 30, 2025, nearly two months after the original due date. Exhibit D, Compliance Correspondence from Investigative Analyst Alexander Kramer to Dee Dukes at D4. To the extent that Respondent argues that she was not aware of a civil monetary penalty associated with the untimely filing of the City Form, Board compliance staff’s June 13, 2025 correspondence specifically mentioned a

civil monetary penalty associated with the failure to file a City Form if the matter was not resolved by the end of the June 30, 2025 curative period. *Id.*

Respondent alleges she did not receive any notice from the Board because the email address that was used by Board staff was one “created for the sole, exclusive, confidential purpose and use in performing the duties required by the Educational Nominating Panel.” Exhibit C, Respondent’s Response to Notice of Administrative Adjudication at C2. Accordingly, Respondent admits that this was an email address she owns and controls arising from her position on the Educational Nominating Panel. *See id.* Whether Respondent checked that email address frequently is irrelevant. Board compliance staff undertook reasonable efforts, in excess of their statutory or regulatory obligations, to inform Respondent that her City Form was overdue but that it could still be filed without penalty.

Even if Respondent did not read any of the above-mentioned correspondence from Board staff, Respondent admits that she was notified of her requirement and failure to file at the end of July 2025. *Id.*³ Respondent’s City Form was not filed for an additional two months after that alleged notification. Proposed Findings of Fact at ¶ 2. This delay is unreasonable in light of the above-described efforts made to alert Respondent of her failure to file. Accordingly, for the reasons discussed *supra*, the Board should find Respondent violated the Code Section 20-610(1) and is subject to a \$1,000 civil monetary penalty.

iii. Respondent’s claimed lack of knowledge or intent is not a valid defense to a Code Section 20-610 violation.

The Code only allows for the base \$1,000 penalty for untimely filing of the City Form to be modified subject to the presence of defined mitigating or aggravating factors. Code §§ 20-

³ Although it is not material, upon information and belief, Respondent actually spoke to a staff member of the Office of the Chief Integrity Officer in July 2025, and not Board Staff as Respondent alleges.

612(1), 20-1302. Intent to violate can be considered an aggravating factor⁴ that warrants an enhanced penalty, but lack of intent is not included as a mitigating factor. Code § 20-1302(b)(1). The Code does not provide an exception to the penalty for failure to timely file a City Form on the grounds of lack of knowledge, nor does it allow the penalty to be waived or reduced for an individual who did not intend to violate.

The Board is not authorized by law to waive the penalty, and here, where the untimeliness of Respondent's filing 147 days after the deadline is not in dispute, the penalty should not be reduced since mitigating factors are absent. The mitigating factors are statutorily defined as: 1) a good faith effort to comply, 2) prompt corrective action, 3) prompt self-reporting, and 4) such other circumstances as may be identified by the Board, by regulation, to warrant a reduced penalty. Code § 20-1302(1)(a)(.1-.4); Regulation No. 3, ¶ 3.19. The Board has not added, by regulation, additional mitigating factors aside from those listed in the Code. *See* Regulation No. 3, ¶ 3.19. Respondent has not proven the presence of any mitigating factors warranting a reduced penalty and Respondent should be subject to the full base \$1,000 penalty. Even if the Board were to make factual findings that mitigating factors were present in this matter, which the Executive Director disputes, the Code definitively states that the Board can only reduce the penalty by \$500 for one mitigating factor, and, at most, \$750 for more than one mitigating factor. Code §20-1302(2)(b). There is no provision, either in the Code or Regulation No. 3, that allows for waiver of the civil monetary penalty in its entirety. *See generally* Code §§ 20-612(1), 20-1302; Regulation No. 3.

The Board should find Respondent violated the Code Section 20-610(1) and is subject to a \$1,000 civil monetary penalty. Respondent was legally obligated to file the City Form by May 1, 2025, and did not file it until September 25, 2025. Proposed Findings of Fact at ¶¶ 1-2; Code § 20-

⁴ The Executive Director does not allege the presence of aggravating factors warranting an enhanced penalty in this matter.

610(1); Regulation No. 3, ¶¶ 3.6, 3.7(a). Respondent's assertions regarding her knowledge and intent of the violation are irrelevant because a failure to file the City Form does not need to be done knowingly or intentionally for a violation to be found and a penalty to be assessed. Code §§ 20-612(1), 20-1302.

Accordingly, for the reasons discussed *supra*, the Board should find Respondent violated the Code Section 20-610(1) and is subject to a \$1,000 civil monetary penalty.

Date: December 1, 2025

Respectfully submitted,

/s J. Shane Creamer, Jr.
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